USDA Forest Service
U.S. DEPARTMENT OF AGRICULTURE

January 2023

Repeal of Subpart E Alaska Roadless Rule

Determination of NEPA Adequacy

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Determination of NEPA Adequacy Review

Current Project Information

Project Name: Alaska Roadless Rule Repeal

Project Initiation Date: 11/1/2021

Proponent Name: Department of Agriculture

Responsible Official: Under Secretary

Unit: Tongass National Forest

County(ies): Southeast Alaska is divided into eight boroughs and two census areas. Haines, Juneau, Ketchikan, Gateway, Petersburg, Sitka, Skagway, Wrangell and Yakutat Boroughs and the Hoonah-Angoon and Prince of Whales-Hyder census areas.

Anticipated Implementation:

Signing Authority: Under Secretary

PALS Tracking #: 60904

Link to Public Project Webpage: https://www.fs.usda.gov/project/?project=60904

General Location: Inventoried Roadless Areas, Tongass National Forest

Previous Project Information for which an Analysis was Completed and a Decision Made

Name of Previous Project: S**pecial Areas; Roadless Area Conservation; National Forest System Lands in Alaska**

Level of Analysis Completed: Environmental Impact Statement (EIS)

Previous Project PALS Tracking #: 54511

Project File: https://www.fs.usda.gov/project/?project=54511

Title of and Link to Previously Completed Analysis Document: FEIS Rulemaking for Alaska Roadless Areas www.fs.usda.gov/nfs/11558/www/nepa/116720_FSPLT3_5694008.pdf

Proposed Action

On January 20, 2021, President Biden ordered all executive departments and agencies to immediately review and, as appropriate and consistent with applicable law, take action to address the promulgation of Federal regulations during the last four years that may conflict with the administration's objectives regarding protection of public health and the environment and to immediately commence work to confront the climate crisis (Executive Order 13990). Executive Order 13990 specifically calls for Federal agencies to review existing regulations issued between January 20, 2017, and January 20, 2021, for consistency with the policy it articulates and to take appropriate action. An accompanying White House fact sheet, published on January 20, 2021, specifically directed USDA to review the "Special Areas; Roadless Area Conservation; National Forest System Lands in Alaska," 85 Fed. Reg. 68688 (October 29, 2020) for consistency with E.O. 13990's policy. *See* https://www.whitehouse.gov/briefing-room/statements-releases/2021/01/20/fact-sheet-list-of-agency-actions-for-review/. On January 26, 2021, President Biden directed all Federal agencies to review tribal consultation policies and practices and recommit to more robust nation-to-nation relationships and respect for our federal trust responsibilities.

Consistent with these Presidential directives, the U.S. Department of Agriculture (USDA or Department), proposes to repeal a final rule promulgated in 2020 (part 294 of Title 36 of the Code of Federal Regulations subpart E) (Subpart E) that exempted the Tongass National Forest (Tongass) from the 2001 Roadless Area Conservation Rule (2001 Roadless Rule). The 2001 Roadless Rule prohibited timber

harvest and road construction or reconstruction within designated Inventoried Roadless Areas, with limited exceptions. Repealing the Subpart E exemption would reinstate application of the 2001 Roadless Rule on the Tongass National Forest (as provided for in the U.S. District Court for the District of Alaska's Judgment in *Organized Village of Kake v. USDA,* 1:09-cv-00023 JWS (D. Alaska filed May 24, 2011) (hereinafter "*Organized Village of Kake*")).

The 2001 Roadless Rule was in effect on the Tongass National Forest from its reinstatement in May 2011 pursuant to the judgment in *Organized Village of Kake* until promulgation of the Subpart E, State-Specific Rulemaking exempting the Tongass in October 2020. However, it is noteworthy that following promulgation of the Subpart E exemption in October 2020, the directed administrative change to the 2016 Tongass Land and Resource Management Plan (hereinafter "2016 Forest Plan") was not issued and no timber harvest or roadbuilding in roadless areas that would have been prohibited by the 2001 Roadless Rule has occurred. Effectively, roadless management on the Tongass National Forest has been consistent with the 2001 Roadless Rule for over a decade. The Department's proposal to repeal the Subpart E exemption simply leaves in place the environmental status quo that has existed for all that time. The agency is proposing to leave roadless conditions as they stood pursuant to the 2001 Roadless Rule, which is also consistent with Tongass Land Management Plan, as amended in 2016.

Similarity Between the Prior Decision and the Proposed Action

Is the new proposed action substantially the same as a previously analyzed proposed action or alternative analyzed in detail in an existing NEPA analysis (36 CFR 220.4(j)(1)(i))?

Yes. Both rulemakings expressly address the question of whether the 2001 Roadless Rule should apply on the Tongass National Forest. The current proposed action to repeal Subpart E and reinstate the 2001 Roadless Rule provision was analyzed in detail as Alternative 1 of the September 2020 Final Environmental Impact Statement (hereinafter "2020 Final EIS") that was issued in association with the promulgation of Subpart E (85 FR 68688).

The 2020 Final EIS may be found at:
www.fs.usda.gov/nfs/11558/www/nepa/109834_FSPLT3_5357355.pdf

Similarity Between the Range of Alternatives

Is the range of alternatives analyzed in the existing NEPA document(s) appropriate with respect to the new proposed action (36 CFR 220.4(j)(1)(ii))?

Yes. Alternative 1 (No Action representing the 2001 Roadless Rule) of the 2020 Final EIS is the proposed action being reconsidered for this Rulemaking. The 2020 Final EIS analyzed five additional action alternatives for managing roadless areas on the Tongass National Forest, an appropriate range of alternatives for this rulemaking.

The following is a brief description of the alternatives evaluated in the 2020 Final EIS (Chapter 2 of the Final EIS contains a complete description of the alternatives):

The 2001 Roadless Rule applied to the Tongass was analyzed as Alternative 1 (and represented the No Action alternative, as the 2001 Roadless Rule was in effect on the Tongass at the initiation of the 2020 rulemaking effort).

Alternative 2 provided limited additional timber harvest opportunity by making timber harvest, road construction, and road reconstruction permissible in areas where roadless characteristics have already been substantially altered, while maximizing Inventoried Roadless Area (IRA) designations where roadless characteristics have not been altered.

Alternative 3 increased the available land base from which timber harvest opportunities could occur by making timber harvest, road construction, and road reconstruction permissible in areas where roadless characteristics have already been substantially altered and in areas immediately adjacent to existing

roads and past harvest areas. Alternative 3 also established a Community Priority category to allow for small-scale timber harvest and associated road construction and reconstruction.

Alternative 4 provided additional available land base from which timber harvest opportunities could occur while maintaining IRA designations for areas defined in the 2016 Forest Plan as Scenic Viewsheds, T77 Watersheds, and The Nature Conservancy/Audubon Conservation Priority Areas.

Alternative 5 maximized the land base from which timber harvest opportunities could occur by removing 2.32 million acres from IRA designation.

Alternative 6 fully exempted the Tongass National Forest from the 2001 Roadless Rule, removing 9.37 million acres from IRA designation. Alternative 6 was selected by then-Secretary Purdue and is referred to in this document as the 2020 Alaska Roadless Rule.

Taken together, the six alternatives represented the spectrum of management regimes identified to the Forest Service through interdisciplinary review, public comments, public meetings, Tribal and Alaska Native corporation consultations, and cooperating agency input.

New Circumstances or Information Since the Prior Decision

Is the existing analysis valid in light of any new information or circumstances relevant to environmental concerns (36 CFR 220.4(j)(1)(iii))?

The agency conducted a review of new information or circumstances relevant to the decision at issue and analysis of alternatives. This review considered (1) if there is new information or circumstances since publication of the 2020 FEIS that would be relevant to environmental concerns and (2) if new information or circumstances would substantially change the analysis in the 2020 FEIS (36 CFR 220.4(j)(1)(iii)).

The proposed rule made a preliminary determination that the 2020 Final EIS remained an effective analysis of the environmental effects of returning the Tongass National Forest to operation under the 2001 Roadless Rule. Commenters on the proposed rule have suggested that new information or changed circumstances exist as a result of release of the USDA Southeast Alaska Sustainability Strategy (SASS) in July 2021, Sealaska Corporation's announced plan to transition away from logging its lands in January 2021, and introduction of the Unrecognized Southeast Alaska Native Communities Recognition and Compensation Act in November 2021 by Senator Lisa Murkowski. The Forest Service further recognizes completion of the Alaska Mental Health Trust Land Exchange in October 2021 as a changed circumstance that may be relevant to Roadless Rulemaking.

As explained in greater detail below, the agency concludes that the existing analysis remains valid and adequate in light of the new information and potential changed circumstances identified by the public as described in 36 CFR 220.4(j)(1)(iii).

New Information or Circumstances

The following announcements and actions in Southeast Alaska are being reviewed as potential new information or circumstances since publication of the 2020 Final EIS: release of SASS, Sealaska Corporation's transition away from logging, introduction of the Unrecognized Southeast Alaska Native Communities Recognition and Compensation Act, and completion of the Alaska Mental Health Trust Land Exchange. The descriptions of potential instances of new information or changed circumstances identified during the comment period are briefly described below and followed by the agency's analysis and conclusion of whether any of them substantially change the analysis in the 2020 FEIS.

Southeast Alaska Sustainability Strategy

The USDA announced SASS in July 2021 to help support a diverse economy, enhance community resilience, and conserve natural resources in Southeast Alaska (https://go.usa.gov/xMNzF). Through this strategy, USDA will consult with Tribes and Alaska Native corporations, and engage partners and communities in a collaborative process to invest approximately $25 million in financial and technical

resources in sustainable opportunities for economic growth and community well-being and identify priorities for future investments.

As a key part of Southeast Alaska Sustainability Strategy, USDA initiated a rulemaking that will restore 2001 Roadless Rule protections on the Tongass National Forest, returning stability and certainty to the conservation of 9.3 million acres of the world's largest temperate old growth rainforest.

One of the other components of the strategy is ending large-scale, old-growth timber harvest on the Tongass National Forest and focusing resources to support forest restoration, recreation, climate resilience, and sustainable young-growth forest. Other components of SASS include initiating meaningful engagement and consultation with Tribes and Alaska Native Corporations, investing $25 million in financial and technical resources in sustainable opportunities for economic growth and community well-being, and initiating rulemaking to restore the 2001 Roadless Rule. In April 2022, the Tongass National Forest released *SASS—Forest Management*, a strategy based on the management direction in the 2016 Tongass National Forest Land and Resource Management Plan (Forest Plan) that describes an integrated vision for forest management in the spirit of SASS. *SASS-Forest Management* includes old-growth timber management approaches to, "Maintain an average of 5 MMBF of old-growth timber volume awarded annually through small and micro sales to benefit local communities" and to "Conduct planning efforts that provide a 3-year supply of old-growth timber to create a predictable source for local operators and contribute to community resilience." Both SASS and *SASS-Forest Management* provide context for project development and priority use of discretionary funds on the Tongass National Forest beginning in 2022. Neither represent law, regulation, directive, or a final agency action representing long-term management decisions on the forest. However, *SASS—Forest Management* potentially indirectly influences the 5-year timber sale schedule 2022-2026. The announcements were reviewed to determine if they would change the analysis of socio-economic impacts (Key Issue 2: Support local and regional socioeconomic well-being, Alaska Native culture, rural subsistence activities, and economic opportunity across multiple economic sectors") and timber resources ("Other Important Issues: Timber Resources).

Sealaska Corporation

The Sealaska Corporation is a major landholder in Southeast Alaska. In the most recent study of Tongass National Forest timber demand[1], Sealaska and other Native corporation lands were projected to supply up to 56% of regional timber volume in Southeast Alaska between 2015 and 2030. The analysis assumed that Native corporation timber would be channeled into export log markets. In January 2021, Sealaska Corporation announced plans to transition out of logging operations beginning in 2022, making lands available for selective harvesting, hunting, fishing and other recreation and tourism activities[2] but decreasing the amount of timber volume harvested annually. The Forest Service collects timber harvest volume information from all Southeast Alaska forest landowners annually, including lands owned and managed by the Sealaska Corporation (citation: on file with the Regional Economist, Alaska Region). From 2018 to 2020, average harvest from Sealaska lands was 68.9 million board feet. In contrast, in 2021, total harvest was 10.8 million board feet, a decline of 85%. Thus, Sealaska Corporation's announcement represents a changed circumstance affecting the supply of timber in Southeast Alaska, although with only one year of data, the magnitude of change is uncertain. The announcement was reviewed to determine if it would change the analysis of socio-economic impacts (Key Issue 2: Support local and regional socioeconomic well-being, Alaska Native culture, rural subsistence activities, and

[1]Daniels, Jean M.; Paruszkiewicz, Michael D.; Alexander, Susan J. 2016. Tongass National Forest timber demand: projections for 2015 to 2030. Gen. Tech. Rep. PNW-GTR-934. Portland, OR: U.S. Department of Agriculture, Forest Service, Pacific Northwest Research Station. 53 p.

[2] Sealaska Corporation announcement available at: https://www.sealaska.com/mysealaska/sealaska-transitioning-out-of-logging-operations/

economic opportunity across multiple economic sectors") and timber resources ("Other Important Issues: Timber Resources).

Unrecognized Southeast Alaska Native Communities Recognition and Compensation Act

In November 2021, Senator Lisa Murkowski introduced the Unrecognized Southeast Alaska Native Communities Recognition and Compensation Act, which if passed would transfer 115,200 acres of NFS surface estate to five proposed new Alaska Native Urban Corporations and the subsurface of the estate to the Sealaska Regional Native Corporation. The selected NFS lands are in 59 named parcels, including some that are split into distinct parts of include adjacent islands. The parcels range in size from 12 to 9,092 acres and are located across seven Forest Service Ranger Districts. Approximately 48 percent of the lands included in the proposed legislation are within the inventory for the 2001 Roadless Rule. As of August 2022, the bill is still pending in Congress. This legislation has been introduced in numerous previous sessions of Congress.

The Alaska Mental Health Trust Land Exchange Act of 2017

The Alaska Mental Health Trust Land Exchange Act of 2017 (Public Law 115–31) authorized an equal value land exchange between the State of Alaska Mental Health Trust Authority and the USDA Forest Service[3]. In October 2021, the State of Alaska Mental Health Trust and the USDA Forest Service completed conveyance of lands under the Act. The Forest Service acquired approximately 18,000 acres of land to be administered in accordance with the laws applicable to the National Forest System. While these lands are not designated IRA's, they are designated in the Act to be managed to preserve the undeveloped natural character of the land and the wildlife, watershed, and scenic values of the land and be managed to provide for recreational opportunities including the development or maintenance of recreational trails for hiking, biking, and skiing. The Forest Service conveyed approximately 21,000 acres of land to the State of Alaska Mental Health Trust, which will help the Trust Land Office increase revenue production from Trust-owned land and will provide timber to the Southeast Alaska timber industry. Approximately 4,100 acres of the 21,000 acres were IRA. Under State of Alaska management, the conveyed lands will support timber industry in Southeast Alaska including direct benefits to local jobs and the economies of Prince of Wales Island and the Ketchikan Borough. The Alaska Mental Health Trust Land Exchange Act was considered in the 2020 FEIS.

Effects of New Information and Changed Circumstances on the Analysis in 2020 FEIS

The Unrecognized Southeast Alaska Native Communities Recognition and Compensation Act does not lead to a change in the analysis in the 2020 FEIS because this bill has still not passed. This information is too speculative to represent new information or changed circumstances relevant to environmental concerns in Roadless Rulemaking. The Alaska Mental Health Trust Land Exchange Act was considered in the 2020 FEIS and therefore does not represent new information or a changed circumstance

SASS—Forest Management and Sealaska's announcement were considered as new information and changed circumstances that could affect the timber sale schedule on the Tongass National Forest and timber supply in Southeast Alaska. They were reviewed by the agency to determine if they would substantially change the analysis from that presented in the 2020 FEIS. Specifically, these announcements were considered for their effects relevant to FEIS "Key Issue 2: Support local and regional socioeconomic well-being, Alaska Native culture, rural subsistence activities, and economic opportunity across multiple economic sectors" and "Other Important Issues: Forest Resources."

[3] Alaska Mental Health Trust Authority land exchange description available at: https://alaskamentalhealthtrust.org/trust-land-office/land-sales/land-exchange/.

The agency reviewed assumptions documented in the 2020 FEIS to support the analyses for these issues, “Suitable Timber Land Assumptions” and “Assumptions for Future Harvest.” The 2020 FEIS includes lands suitable for timber production based on the 2016 Forest Plan and uses the projected timber sale quantity (PTSQ) from the 2016 Forest Plan as the estimated maximum average annual harvest under the 2016 Forest Plan (2020 FEIS p. 3-4). The 2020 FEIS includes assumptions about the distribution of harvest across the Forest (2020 FEIS p. 3-4). The agency has found that these assumptions remain valid because they continue to represent suitable timber land on the Tongass and adequately serve as a proxy for the maximum average annual harvest.

The agency reviewed the analysis of environmental consequences for Key Issue 2 related to Forest Products, which provides a programmatic assessment of the impacts that may result from the alternatives considered for a proposed Alaska Roadless Rule. The 2020 FEIS states that harvest levels are not expected to vary significantly among the alternatives, but that the amount and location of acres suitable for timber production does vary by alternative. It further states that overall timber harvest levels and general composition (old-growth versus young-growth) are expected to remain unaffected by the final rule. Therefore, the 2020 FEIS analysis focused on changes in old-growth suitable acres to compare impacts of alternatives (p. 3-50). In the 2020 FEIS analysis of employment and income driven by the Forest Products industry, impacts were based on the first decade of implementation of the 2016 Forest Plan and an average annual harvest of 46 MMBF for comparison of alternatives (FEIS p. 3-55). This common means of comparison was chosen despite evidence presented in the FEIS that volume sold on the Tongass in fiscal years 2017, 2018, and 2019 were below that average (30.7, 9.0, and 5.3 MMBF, respectively), due in part to litigation and uneconomical sales that did not receive industry bids. All alternatives were found to support a similar range of direct jobs and income (2020 FEIS p. 3-56), demonstrating that the Roadless Rule is not a primary driver of timber volume output, jobs, or income from the Tongass National Forest and that factors influencing timber volume output such as SASS and Sealaska harvest volumes have minimal relevancy to Roadless Rulemaking.

The agency also reviewed the 2020 FEIS analysis of environmental consequences for Other Important Issues: Timber Resources. This analysis addresses two questions: (1) How much land would be allocated to timber production, and (2) What would be the future condition of the Forest in 100 years? Similar to the analysis of Key Issue 2, this analysis states that all alternatives would have the same PTSQ and that the main effect of the alternatives on timber would be the ability to develop economic sales. The analysis found that no additional harvest would take place under any of the alternatives, but that the expansion of suitable acres under some alternatives would result in a larger area available for the development of sales, allowing more choices for the development of economic sales. The cumulative effects analysis, which describes changes in the timber land base in Southeast Alaska since 1954, provides an estimate of timber volume for all landownerships over the next decade of 136 MMBF. While SASS-Forest Management and Sealaska harvest volumes may alter this estimate, the 2020 FEIS analysis finds this volume estimate to be consistent across all alternatives. This further demonstrates that the Roadless Rule is not a primary driver of timber volume output and that factors influencing timber volume output such as SASS-Forest Management and Sealaska harvest volumes have minimal relevancy to Roadless Rulemaking.

Can you reasonably conclude that new information and new circumstances would not substantially change the analysis of the new proposed action?

The agency has determined that the new information and changed circumstances would not substantially change the analysis in the existing NEPA document ((36 CFR 220.4(j)(1)(iii)). Roadless rulemaking affects the areas available for timber harvest rather than the volume available for timber harvest. The new information and changed circumstances reviewed by the Forest Service are all relevant to timber volume harvested. There continue to be many varied influences on timber volume available for sale in Southeast Alaska (e.g., market value, litigation, landowner objectives, actual landholdings, and the discretionary nature of funding for timber management); however, all are within the scope of the Forest Plan’s existing programmatic analysis relied upon during the 2020 rulemaking and Final EIS. At the present time, the projections in the 2020 Final EIS and Forest Plan remain both reasonable and adequate to inform the decision at issue. 2016 Forest Plan projections as applied in the 2020 Final EIS remain the most

reasonable estimates of long-term harvest levels to inform the decision among alternatives in this rulemaking.

The programmatic comparison of the differences among the rulemaking alternatives remains valid and sufficient to inform the Secretary of Agriculture's decision on whether to repeal the 2020 Alaska Roadless Rule and reinstate the provisions of the 2001 Roadless Rule (Alternative 1 in the Final EIS) or select another alternative or components of another alternative as his final decision.

Adequacy of Effects Analysis for The Proposed Actions

Are the environmental effects that would result from implementation of the new proposed action similar to those analyzed in the existing NEPA document(s) (36 CFR 220.4(j)(1)(iv))?

The application of the 2001 Roadless Rule was evaluated in the 2020 Final EIS as Alternative 1. The new information and changed circumstances have been found to result in no substantial changes to the analysis; thus, environmental effects would be similar to those analyzed in the 2020 FEIS.

Responsible Official Review and Determination of Adequacy and Compliance

The Responsible Official has reviewed the currently proposed action and input provided by commenter on the Notice of Proposed Rulemaking and pertinent resource specialists and reached the following determinations:

☒ The current proposed action is substantially the same as previously proposed and analyzed during the 2020 Subpart E Rulemaking for Alaska Roadless Areas. (See discussion under the Similarity Between the Prior Decision and the Proposed Action/Alternatives section.) (36 CFR 220.4(j)(1)(i))

☒ The range of alternatives analyzed for the 2020 Subpart E Rulemaking for Alaska Roadless Areas is appropriate with respect to the new proposed action. (See discussion under the Appropriate Range of Alternatives section. Continued application of the 2001 Roadless Rule to the Tongass was analyzed as Alternative 1 in the 2020 FEIS.) (36 CFR 220.4(j)(1)(ii))

☒ New circumstances or information since promulgation of the Subpart E Rulemaking for Alaska Roadless Areas does not change the anticipated effects of the currently proposed repeal of od the Subpart E rule. (See discussion under the New Circumstances or Information Since the Prior Decision section.) (36 CFR 220.4(j)(1)(iii))

☒ Effects analysis completed for the Subpart E Rulemaking for Alaska Roadless Areas adequately discloses the effects of the repeal of the Subpart E rulemaking. (See discussion in the Adequacy of Effects Analysis for the Proposed Actions section.) (36 CFR 220.4(j)(1)(iv))

☒ The currently proposed repeal of Subpart E is also consistent with the following applicable laws, regulations and/or policy. (See discussion in the Adequacy of Effects Analysis for the Proposed Actions and previously completed analysis and/or decision document [links provided in the Previous Project Information section]).

Applicable Laws, Regulations and Policies

- Organic Act, MUSYA, RPA, NFMA
- 2001 and 2020 Roadless Rule (66 FR 3243 and 66 FR 3272, January 12, 2001, 85 FR 68688, part 294 of Title 36 of the Code of Federal Regulations subpart E)
- Executive Order 13990
- Executive Order 13175, Consultation and Coordination with Indian Tribal Governments

Special Management Areas:

- Roadless

The following items have occurred or will occur as required:

☒ Public notification and involvement (e.g., scoping and comment periods),

☐ Administrative review processes (e.g., appeals and/or objections, if applicable); and

☒ Interagency coordination or consultation.

Contact

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